NewsBank inc.

Staedler: A yearly tradition of California housing legislation disappointment

October 5, 2020 | San Jose Spotlight (CA)
Author: Bob Staedler | Section: Columns | 725 Words
OpenURL Link

A yearly California tradition that we have become accustomed to over the past several years is the hysteria and disappointment of potential housing legislation. It generally ranges from a hopeful slogan to wild and unsubstantiated levels of optimism.

An example of the overstated optimism is the Metropolitan Transportation Commission's CASA — the Committee to House the Bay Area in 2019. They claimed they could lobby and pass game-changing legislation in 2019 with a 10-point set of policy recommendations. Little happened and we are in a worsening predicament in terms of housing.

Let's review where we are started and ended in the 2020 California housing legislation session.

Senate President Pro Tempore Toni Atkins (D-San Diego) presented a slate of housing production legislation, including:

SB 995 (Atkins): This bill would streamline the California Environmental Quality Act (CEQA) process for smaller housing projects that include at least 15% affordable housing. It also would broaden a process that allows cities to do upfront planning that streamlines housing approvals on an individual project level. The bill would extend and expand a program that has generated 10,573 housing units and created nearly 47,000 jobs since 2011.

SB 1085 (Nancy Skinner, D-Berkeley): This bill would enhance existing Density Bonus Law by increasing the number of incentives provided to developers who build more affordable housing units.

SB 1120 (Atkins): This bill would encourage small-scale neighborhood development by streamlining the process for a homeowner to create a duplex or subdivide an existing lot in all residential areas. Such applications would be required to meet a list of qualifications that ensure protection of local zoning and design standards, historic districts, environmental quality and existing tenants vulnerable to displacement.

Gov. Gavin Newsom said in a statement Sept 18 he signed legislation to help California make significant progress on the state's housing construction and equity goals. Here is the list of housing-related bills he signed.

AB 434 (Tom Daly, D-Anaheim): Housing financing programs: uniform procedures.

AB 725 (Buffy Wicks, D-Oakland): General plans: housing element: moderate-income and above moderate-income housing: suburban and metropolitan jurisdictions.

AB 831 (Tim Grayson, D-Concord): Planning and zoning: housing: development application modifications.

AB 1561(Cristina Garcia, D-Bell Gardens): Planning and zoning: housing element and entitlement extensions.

AB 1851 (Buffy Wicks, D-Oakland): Religious institution affiliated housing development projects: parking requirements.

AB 2345 (Lorena Gonzalez, D-San Diego): Planning and zoning: density bonuses: annual report: affordable housing.

AB 3182 (Philip Ting, D-San Francisco): Housing: governing documents: rental or leasing of separate interests: accessory dwelling units.

AB 3308 (Jesse Gabriel, D-Encino): School districts: employee housing.

SB 288 (Scott Wiener, D-San Francisco): California Environmental Quality Act: exemptions: transportation-related projects.

SB 940 (Jim Beall, D-San Jose): Housing Crisis Act of 2019: City of San Jose.

SB 1079 (Skinner) Residential property: foreclosure.

SB 1148 (Brian W. Jones, R-Santee): Mortgages and deeds of trust: foreclosure.

SB 1157 (Steven Bradford, D-Gardena): Tenancy: credit reporting: lower income households.

SB 1190 (Maria Elena Durazo, D-Los Angeles): Tenancy: termination.

SB 1212 (Susan Rubio, D-Baldwin Park): Joint powers authorities: San Gabriel Valley Regional Housing Trust: board of directors.

Respectfully, Mr. Governor, I disagree with your definition of significant progress.

Did you notice what wasn't signed by the governor? The slate of bills proposed by Atkins.

It's an utter failure in leadership that Atkins couldn't get any of the bills passed with a large majority of Democrats in Sacramento. She blames timing and COVID-19 but the buck stops with her and she needs to take responsibility for it.

There is a cultural divide between Northern and Southern California that rears its ugly head year after year. It kills all hope and optimism of needed housing legislation to pass. The legislators to the south have shown their true NIMBY selves and cannot be counted on for a thoughtful compromise on getting substantive housing legislation passed.

My recommendation is for a new approach. Let's have Newsom push for a new slate of housing bills that are substantial enough to make a dent in the housing tragedy that we are experiencing.

We need to start the 2021 legislative period focused on results with the governor's office being the engine of change. Onward and upward.

San José Spotlight columnist Bob Staedler is a principal at Silicon Valley Synergy, a San Jose-based land use and development consulting firm. His columns appear every first Monday of the month. Contact Bob at bob@svsynergy.com or follow @BobStaedler on Twitter.

The post Staedler: A yearly tradition of California housing legislation disappointment appeared first on San José Spotlight.

© Copyright 2020 San Jose Spotlight. All Rights Reserved.

- **Citation (apa Style)**
  Staedler, B. (2020, October 5). Staedler: A yearly tradition of California housing legislation disappointment*San Jose Spotlight (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/186D880BC7508B18.